IN THE HIGH COURT OF MADHYA PRADESH : BENCH AT INDORE

(COMMERCIAL DIVISION - CONSTITUTED UNDER SEC 4 OF COMMERCIAL COURTS ACT, 2015)

CNR NUMBER: MPHC010001072026	**SUIT IDENTIFIER:** COMMERCIAL SUIT NO. CS(COMM)/0001/2026
DISPUTE NATURE: Commercial Division (Order XV-A CPC)	**CLAIM VALUATION:** ■45,700,000.00
FILING DATE: 19 October 2026	**PRE-TRIAL CMH COURT:** Hall 04 (Malwa Region)

M/S MALWA BUILDERS
A commercial entity registered under the Companies Act / Partnership Act, having principal place of business at Indore, M.P. **... PLAINTIFF**

VERSUS

M/S APEX BUILDERS
Commercial respondent having corporate operations / warehouse at Indore, Madhya Pradesh. **... DEFENDANT**

PLAINT UNDER ORDER VII RULES 1 & 2 OF THE CODE OF CIVIL PROCEDURE, 1908

READ WITH SECTION 12-A & SECTION 2(1)(c) OF THE COMMERCIAL COURTS ACT, 2015

1. That the Plaintiff is a commercial corporate organization carrying on business operations in the Malwa Region of Madhya Pradesh. The present suit is instituted through its authorized signatory by virtue of a Board Resolution dated 12 October 2026.

2. That the present commercial dispute pertains to mercantile transactions and supply contracts between the parties aggregating to ■45,700,000.00, thereby qualifying as a 'Commercial Dispute' within the meaning of Section 2(1)(c) of the Commercial Courts Act, 2015.

3. That pursuant to purchase agreements, the Plaintiff performed its contractual obligations with complete delivery and issued electronic GST tax invoices. The Defendant acknowledged receipt of shipments without raising any contemporaneous demur or objection regarding merchantable quality.

4. That despite receipt of repeated statutory notices and billing statements, the Defendant committed willful default and failed to liquidate the outstanding commercial liabilities, thereby directly frustrating contractual covenants.

5. That the cause of action accrued within the territorial jurisdiction of the Hon'ble High Court Bench at Indore where the commercial agreement was executed, goods were delivered, and payment was stipulated to be remitted.

6. **STATUTORY COMPLIANCE OF ORDER XV-A CPC:** In accordance with Order XV-A Rule 2 CPC, the Plaintiff files herewith its Comprehensive Evidentiary List, Statement of Truth under Order VI Rule 15A, and annexes primary reliance documents with verified cryptographic SHA-256 hashes.

PRAYER CLAUSE:

WHEREFORE, it is most respectfully prayed that this Hon'ble Commercial Court may graciously be pleased to:
a) Pass a decree of recovery in favour of the Plaintiff and against the Defendant for an amount of ■**45,700,000.00**;
b) Award pendente lite and future commercial interest @ 18% per annum from default date until realization;
c) Direct expeditious pre-trial Case Management Hearing (CMH) under Order XV-A Rule 2 for early fact crystallization; and
d) Award comprehensive costs of this suit in favour of the Plaintiff under Section 35 CPC.

VERIFICATION UNDER ORDER VI RULE 15 CPC:

I, the Authorized Representative of the Plaintiff, do hereby solemnly declare and verify that the contents of paragraphs 1 to 6 are true and correct to my personal knowledge derived from corporate accounts and business records, and nothing material has been concealed therefrom. Verified at Indore, MP on 19 October 2026.

TAMPER-EVIDENT CRYPTOGRAPHIC SHA-256 DIGITAL SEAL:
`56082d8ecf74e38a36de70a2f458eb2a97c22f1424dc91c712f7fdc7e84330ee`

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